

WORLD MARTIAL ARTS CENTER, LLC

MEMBERSHIP AGREEMENT

(608 Blackwell Rd, Warrenton, VA 20186)

☐ NEW ☐ UPGRADE ☐ ADD-ON

DATE: _____

BUYER INFORMATION:

NAME: _____ S.S.#: _____ LICENSE #: _____
ADDRESS: _____ DOB: _____
CITY: _____ ST.: _____ ZIP: _____ HOME PHONE: (____) _____
EMPLOYER: _____ WORK PHONE: (____) _____
E-Mail: _____ CELL PHONE: (____) _____

IN CASE OF EMERGENCY CONTACT:

NAME: _____ RELATION: _____ (TEL) (H) _____ (W) _____

STUDENT INFORMATION:

NAME: _____ DOB: _____ M/F NAME: _____ DOB: _____ M/F

NAME: _____ DOB: _____ M/F NAME: _____ DOB: _____ M/F

LENGTH OF MEMBERSHIP:

Your membership will be _____ times a week beginning on _____ and end _____ months after that date or lessons or _____ belt level whichever comes first. Tuition must be paid in full regardless of whichever comes first.

TUITION:

The undersigned promises to pay the AMOUNT BUDGETED shown in _____ monthly installments of \$ _____ with the first installment due on ____/____/20____, and all subsequent installments on the same day of each consecutive month shall be made directly payable to World Martial Arts Center, LLC or its affiliates until paid in full.

CASH PRICE (1): _____

DOWN PAYMENT (2): _____

UNPAID BALANCE (3): _____

SERVICE CHARGE (4): _____

AMOUNT BUDGETED (3+4): _____

TOTAL PRICE (1+4): _____

Automatic Payment Option: Complete this section if you wish to make your monthly payment by an Automatic Payment Option. By signing below, I authorize World Martial Arts Center, LLC and its affiliates to initiate and execute a debit from the bank account I have indicated. Please attach voided check or printed credit card slip.

☐ Bank Name: _____
ABA Routing #: _____ Checking Account #: _____
☐ Credit Card Account #: _____ Exp Date: _____

(Visa, Mastercard, and Discover accepted)

Member may withdraw consent to such pre-arranged payments at any upon written notice thirty (30) days in advance. Withdrawal of consent, however, will not relieve member from any obligation to make payment.

Signature: _____ (Checking Account Holder) Date: _____

By signing this agreement, I understand that under the terms of this agreement, the school obligates itself to furnish me with professional instruction and suitable facilities for teaching lessons. All class sessions are supervised by qualified personnel trained in the procedures and traditions of the Martial Arts. The regular tuition is \$230.00 per month per person, but a substantial discount has been provided to me by virtue of enrolling in a regular course. There will be a registration fee that is nonrefundable.

Student hereby represents that he/she is physically condition to participate in the prescribed course of instruction.

I understand that my tuition is arranged to be made in monthly installments and is not affected by my lesson schedule and/or attendance.

I understand and agree that the school, the owners, operators, or persons in charge of such establishment, or employees will not be held liable for any injuries, damages, loss, etc. Also, student agrees that all activities are taken at his/her own risk.

I acknowledge if a payment is not made within 10 days after it is due, I will be charged \$10.00 or 5% of the amount in default.

I will faithfully comply with all the rules and regulations of the school and the traditions of the Martial Arts. I further understand that failure to complete the lessons does not relieve me of my obligation to pay the tuition in full.

As required by General Obligation Law, you have certain rights to cancel this contract. These are set forth on the reverse side of this contract and are made a part of this agreement.

You may cancel this agreement without any penalty or further obligation within three (3) business days from the date of this agreement.

Notice of cancellation shall be in writing and mailed to World Martial Arts Center, LLC by registered or certified mail.

By signing below, you certify that you've received a completed copy of this agreement and the rules and regulations.

Accepted by: _____ Student: _____

BAD CHECK FEE:

If your checks or drafts for any payments under this agreement are returned for insufficient funds, you may be charged a bad check fee of \$30.00 (checking/saving) or a service fee of \$15.00 (any credit card), and when applicable, a late charge as well.

TESTING FEES:

In order to cover the costs of registration, promotion, issuance of certificates and new belts, a testing fee is charged at each examination.

NOTICES/PROTESTS:

The circulating or posting of petitions, notices, circulars, group protests, picketing, or statements of any kind are prohibited on the school premises unless previously approved by management.

ENTIRE BALANCE DUE:

If you repudiate this agreement in writing, breach any provision, or do not make a payment within 10 days of your due date, we can suspend your membership privileges and require you to pay the entire balance of what you still owe.

DEFAULT:

You will be in default if you have not paid us everything you owe by the scheduled end of this agreement, or if the entire balance of what you owe becomes due and you do not pay us. After the scheduled end of this agreement, you agree to pay interest at the Annual Percentage Rate stated by law on the Amount Budgeted which you still owe until you pay in full. We may get a court judgement against you for what you still owe and you agree to pay any court costs and reasonable lawyer's fees involved in collecting this agreement to remain valid and enforceable.

CHANGE IN MEMBERSHIP PLAN:

If you change your membership plan by signing a new agreement which includes your old balance in the cost of the new membership, the new agreement will void the old one. However, cancellation of your new agreement will cause your previous agreement to remain valid and enforceable.

CHANGE IN THE AGREEMENT:

This is the entire agreement covering your purchase from us. It can only be changed in writing signed by you and us. We can waive or delay the enforcing of any of our rights under this agreement without losing them.

CONSUMER'S RIGHT TO CANCELLATION:

You have the right to cancel this agreement without any penalty or further obligation within three (3) days from the date of this agreement. Cancellation request must be in writing and mailed to World Martial Arts Center, LLC by registered or certified mail at 608 Blackwell Rd, Warrenton, VA 20186.

If you move your residence and work more than 25 miles from the school facility, your membership may be transferred to any affiliated school or facility which World Martial Arts Center, LLC has an agreement allowing transfer. Transfer will not constitute cancellation of this agreement. Further information may be obtained from World Martial Arts Center, LLC. Cancellation under this provision requires documented proof of new permanent address, phone number, and name and address of any new employer (minor case: copy of new school registration).

Members may cancel this agreement if written proof (verified by a physician) is submitted stating that the use of our facilities and services would impair the member's health during the term of this agreement. The disability or condition preventing use of the facility must be permanent. The said condition is considered permanent if the member is unable to participate for more than 12 months. In order to cancel this agreement, the member must authorize us to contact his/her physician.

In the case of any cancellation, your refund or membership dues shall be prorated based on the regular tuition price without any discount or special.

NOTICE OF CONSUMER RIGHTS:

1. Relocation of School
Our school reserves the right, to relocate or consolidate school locations within a ten (10) mile radius of the current location. We will make a good faith effort to replace with comfortable facilities, but we do not guarantee the same.
2. If you become disabled for at least three (3) months during the membership terms and the disability is confirmed in writing by a physician, you have the right to an extension of this agreement.
3. If the school is closed for a month or more, you are entitled to your choice of either an extension of the agreement or a prorated refund, except if the closing is not the fault of the facility, in which case the choice or remedy is the school's.
4. You hereby authorize the school and its agents, successor and assigns to photograph you and or your children and/or use voice without restriction and to utilize such photographs and/or voice transcriptions for any commercial purpose, including, but not limited to the promotion and marketing of the school, and you agree that you shall not be entitled to receive any compensation whatsoever of any kind as result of such use.
5. This notice of Consumer's Rights is an integral part of the Application and Agreement for Membership.
6. World Martial Arts Center, LLC has a right to modify the due date to the nearest 5th increment (1st, 5th, 10th, 15th, 20th, 25th).

NOTICE: I/WE HEREBY CERTIFY THAT THE FOREGOING STATEMENTS ARE TRUE AND COMPLETE AND BY SIGNING THIS AGREEMENT I/WE GIVE THE RIGHT FOR THE CREDITOR GRANTOR TO CHECK MY/OUR CREDIT HISTORY.

NOTICE: IN CONSIDERATION FOR THE TRAINING OBTAINED, WE (MEMBER AND/OR PARENT OR GUARDIAN) AGREE NOT TO COMPETE WITH THIS MARTIAL ARTS SCHOOL OR ANY AFFILIATES, DIRECTLY OR INDIRECTLY, IN ANY CAPACITY WHATSOEVER, DURING OR AFTER THE TERM OF THIS MEMBERSHIP AGREEMENT, WHETHER BY OWNING, OPERATING, MANAGING, CONTROLLING, BEING EMPLOYED BY, PARTICIPATING IN, OR BEING CONNECTED IN ANY MANNER WITH THE OWNERSHIP, OPERATION, MANAGEMENT, OR CONTROL OF ANY BUSINESS SIMILAR TO THE TYPE OF THE BUSINESS CONDUCTED BY THIS MARTIAL ARTS SCHOOL OR ANY AFFILIATES, OR TAKE ANY ACTION WHICH MIGHT BE CONSTRUED AS COMPETING WITH THIS MARTIAL ARTS SCHOOL OR AFFILIATES IN ANY MANNER IN THE UNITED STATES UNLESS WE GET WRITTEN PERMISSION FROM THIS MARTIAL ARTS SCHOOL.

NOTICE: SEE OTHER SIDE FOR IMPORTANT INFORMATION.

WORLD MARTIAL ARTS CENTER, LLC

MEMBERSHIP AGREEMENT - CONTACT PERMISSION ADDENDUM

608 Blackwell Road, Warrenton, VA 20186 | (540) 347-7266

Member / Student:

Responsible Party (if different):

Email Address:

Mobile Phone:

OPTIONAL CONTACT PERMISSION

For every channel marked **YES** below, I expressly authorize World Martial Arts Center, LLC (WMAC), and service providers or third-party debt collectors acting on WMAC's behalf, to contact me at the email address or telephone number I provided about this membership account. Account-related communications may include membership administration, billing, payment reminders, delinquency notices, account servicing, and collection of amounts claimed due under the Membership Agreement. This permission does not authorize marketing or advertising messages.

CONTACT CHANNEL	YES	NO	PERMISSION
Email	☐	☐	Account-related email messages at the address written above.
Text messages	☐	☐	Account-related SMS/text messages at the mobile number written above, including messages sent using automated technology.
Live phone calls	☐	☐	Account-related live calls at the home, work, or mobile numbers I provided.

Text-message terms. Message frequency varies. Message and data rates may apply. Consent to receive text messages is not a condition of purchasing or maintaining a membership. Reply STOP to a text message to request that messages from that sender stop.

Withdrawal and communication preferences. I may withdraw or limit this permission at any time by notifying WMAC in writing or by calling (540) 347-7266. Withdrawal will be effective after a reasonable processing period and will not affect communications already sent. A service provider or debt collector may provide its own opt-out method, which I may use directly.

No waiver of rights. Nothing in this addendum waives any right or protection under federal or state law. WMAC and every service provider or debt collector remain responsible for complying with all laws governing the timing, frequency, privacy, content, and method of communications, including any later request to stop or limit communications. A blank or unclear selection will be recorded as **NO**.

I have read this addendum, selected YES or NO for each contact channel, and confirm that the contact information above is mine or that I am authorized to provide it.

Signature of Member / Responsible Party

Date

Printed Name

Relationship to Member (if applicable)